SPECIAL BENCH **ITEM NO. 111**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No. 13/ALD/2022 IN CA (CAA) No. 6/ALD/2022

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI SUBRATA KUMAR DASH,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 12th January, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**AGARWAL FIN-LEASE AND INVESTMENT PVT. LTD. WITH TECHNICAL ASSOCIATES LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH VIDEO CONFERENCING:

Sh. Shashi Kant Gupta, PCS. : *For the Petitioner*
Sh. Shivendra Bahadur, CGSC. : *For the RoC*
Sh. Ajeet Kumar Singh, AOL : *For the OL, Alld./ RD(NR).*

ORDER

This is a second motion petition. The Reports of the RD/OL have already been filed. The notices were issued to the Income Tax Authorities, however, there is no representation nor any report has been filed by the Income Tax Authority so far.

As per the affidavit of compliance filed by the petitioners on 19th September, 2022 at Annexure-11 at Page-89, the notices were served on 10th August, 2022 to the concerned Income Tax Authorities for filing their response affidavit to the second motion petition. A tracking report of the Indian Postal Department has also been attached at page-88 of the said affidavit of compliance.

Though, there is no representation by the Income Tax Authorities, however, in the interest of justice, a last opportunity is granted to the Income Tax Authorities by serving a fresh notice to them to be returnable within a period of two weeks and reply if any, to be filed within another period of two weeks.

-Sd- ***-Sd-***

Let the fresh notice be served by the Ld. Counsel representing the petitioner to the Income Tax Authorities through Ld. Counsel representing the Income Tax Authorities having jurisdiction over the petitioner-company by way of an e-mail along with the copy of second motion petition within a period of two weeks. Affidavit of service would also be filed to this effect.

It is made clear that in case there is no representation nor any reply is filed on behalf of the Income Tax Authorities, this Tribunal will be constrained to proceed further in the matter.

Let the matter to come up for further hearing on 10th February, 2023.

-Sd-
(Subrata Kumar Dash)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

12th January, 2023

Priya Agarwal
(Stenographer)